

****SEE ALSO Newsletter of May 21, 2024****

[doc. web n. 10013356]

Provision of April 11, 2024

Register of Provisions

n. 234 of April 11, 2024

****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, Members, and

Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

Having seen the documentation on file;

Having seen the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

****PREAMBLE****

1. ****Introduction.****

With a report submitted pursuant to Article 144

of the Code by Ms. XX, an employee of the Municipality of

Madignano (hereinafter, the "Municipality"), the

installation of a video surveillance system at the

Municipality's premises, near the attendance

detection systems and in the absence of an agreement with the trade unions, was complained about, as well as the use of such a system for making specific disciplinary charges against the employee regarding the failure to comply with working hours and the violation of her official duties.

2. **The investigative activity.**

In response to a request for information from the Authority (see note prot. n. XX of XX), the Municipality, with note of XX (prot. n. XX, acquired in the protocol of the Guarantor n. XX of XX), declared, in particular, that:

“following behaviors not in compliance with the employment contract, a disciplinary charge was issued to an employee of the Municipality [...], regarding the failure to comply with working hours; the first reports regarding the employee's conduct had been brought to the Mayor by some citizens [...]”;

“during the internal investigation, such reports were compared with the time stamps recorded on the monthly attendance cards”;

“the information acquired [was] obtained from paper support, produced by the time clock as the only tool used for the detection of the working hours of employees”;

“the camera positioned inside the atrium of the municipality was installed solely to protect municipal property and the safety of employees [...]”;

“the video surveillance system currently in operation was authorized by the Labor Inspectorate of Cremona with Provision No. XX”;

“since its installation [...] the upper right section has been voluntarily obscured, in order not to capture the area where the attendance detectors are located, in compliance with current regulations.”

In response to a further request for information from the Authority (see note prot. XX of XX), the Municipality, with note of XX (prot. n. XX, acquired in the protocol of the Guarantor n. XX of XX), declared, in particular, that:

“regarding the date of installation of the surveillance system in the atrium of the Municipality, it was not possible to ascertain a precise date”;

“the camera was physically positioned between the months of XX and XX;

“the connection to the video surveillance system occurred in the month of XX, following an assault against the social worker and the then councilor that took place towards the end of the month of XX”;

“since then, as there have been no further violent events, the camera in question has not

been subject to specific checks.”

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having:

- failed to provide the interested parties (i.e., both the workers and visitors at the premises of the the need to ensure public safety and to investigate crimes, and not for the purpose of monitoring employees in the workplace”;
- the Municipality has “decided to connect the camera following an aggression suffered by the social worker”;
- “it is evident that the sole purpose pursued by the Municipality, as well as by the previous actions, is the protection of collective security, the prevention and investigation of crimes, and not workplace surveillance for the protection of company assets. Therefore, the individuals concerned by the processing have never been the public employees of the Municipality as such, but the entire community”;
- “it follows that [...] Law No. 300/1970 is not applicable”;
- “consistent with [these] actual purposes of the processing [...], the] Mayor, as Judicial Police Officer pursuant to Article 57, paragraph 1, letter c of the Code of Criminal Procedure, following serious indications against the reporter consisting of the failure to comply with the ‘formalities required for the detection of attendance’ [...] and complaints ‘from the remaining staff’, as well as ‘reports regarding the conduct of the employee brought to the Mayor by some citizens, who, daily stationed near the Municipality, had noticed and reported in detail the events reported in the proceedings’ [...] decided, for the strictly necessary time, to process the data collected in compliance with the purposes outlined in the municipal regulation [on video surveillance]”;
- “the full legitimacy of the original collection and, consequently, the use of the data is evident, since during the investigations of the Judicial Police, the conduct does not fall within the scope of the [Regulation] but within Legislative Decree 51/2018 concerning the processing of data carried out by Public Authorities for the purposes of prevention, investigation, ascertainment, or prosecution of offenses. [...] The investigation in this case concerned conduct carried out by the reporter that had criminal relevance and, consequently, was also brought to the attention of the investigators through an oral complaint filed on XX”;
- “in the denied hypothesis that it is believed that in the processing of data [...] [the Municipality] can be qualified as an employer, the now constant jurisprudential dictate in this regard would nonetheless legitimize the conduct [of the Municipality] [...]”;
- “[the Mayor of the Municipality], in fact, based on the emergence of concrete indications suggesting the presence of ongoing offenses by the employee [...] dating back to a period prior to the connection of the internal camera - ‘from the year XX’ [...] - which occurred in XX, did not carry out a direct control aimed at constantly monitoring the employee in proximity to it as required in the case of remote monitoring; also because it would have been impossible, given the positioning of the camera, which is reiterated, on a lower floor compared to where the work activity is carried out [...]”;
- “in reality, the conduct in question was, instead, aimed at ascertaining specific unlawful conduct harmful to the image of the Entity [...]”;
- “therefore, the data was processed as a result of the need to ensure public safety and to investigate crimes, and not for the purpose of monitoring employees in the workplace.”

that are processed must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (art. 5, par. 1, lett. c) of the Regulation).

3.2. The principle of necessity and proportionality.

In the context of the use of video surveillance systems, the principle of necessity and proportionality must be respected. This means that the use of such systems must be justified by a legitimate interest that cannot be achieved by less intrusive means. The data controller must demonstrate that the benefits of the surveillance outweigh the potential impact on the privacy of the individuals being monitored.

4. Conclusion.

In light of the above considerations, it is concluded that the use of video surveillance systems by public entities must comply with the applicable legal framework, ensuring that the rights of employees are adequately protected. The implementation of such systems should be accompanied by appropriate measures to inform employees and to ensure transparency in the processing of their personal data.

5. Recommendations.

It is recommended that public entities regularly review their video surveillance practices to ensure compliance with legal requirements and to assess the necessity and proportionality of such measures. Additionally, ongoing training and awareness programs for employees regarding their rights and the use of surveillance systems should be established to foster a culture of respect for privacy in the workplace.

must be processed "lawfully, fairly, and transparently in relation to the data subject" and "collected for specified, explicit, and legitimate purposes" (principles of "lawfulness, fairness, and transparency" and "purpose limitation"), allowing for the possibility of subsequent processing but only "in such a way that it is not incompatible with the initial [purposes]" of the processing (Article 5, paragraph 1, letters a) and b) of the Regulation). In this context, the data controller may use for further processing only the personal data lawfully collected in the presence of an appropriate legal basis, having previously "satisfied all the requirements for the lawfulness of the original processing" (see Recital No. 50 of the Regulation), and therefore within the limits in which the original collection was lawfully carried out, taking into account the primary purpose and in compliance with the general principles of data protection, including that of "lawfulness, fairness, and transparency," in implementation of which the data controller must adopt appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 of the Regulation in a concise, transparent, intelligible, and easily accessible form, using clear and plain language (see Article 12, paragraph 1, of the Regulation).

3.2. The lawfulness and transparency of the processing of personal data of workers through the video surveillance system. Based on the elements acquired and the facts emerged following the investigative activity, it has been established that, between the months of XX and XX, the Municipality installed a video surveillance camera in the lobby of its headquarters, connecting it to the video surveillance system in the month of XX, following an assault suffered by a social worker and a councilor. However, the installation of this camera was authorized by the Territorial Labor Inspectorate of Cremona with provision No. XX only on the date of XX (see Annex 1 to note prot. No. XX of XX).

That said, it should be noted that, regarding the purposes of processing pursued through this video surveillance camera, the Municipality, during the investigation and in its defense submissions, has put forward heterogeneous and mutually contradictory arguments. Initially, the Municipality indeed stated that the camera in question would have been installed "solely for the purpose of protecting municipal property and the safety of employees" (see of XX, prot. No. XX). Subsequently, in its defense submission, the Municipality argued that the sole purpose of processing pursued was, in fact, "public safety and [...] crime detection." In this regard, it should be noted that there is no evidence in the records that the camera in question was installed by the Municipality for the pursuit of urban safety purposes. According to Article 5, paragraph 2, letter a), of Decree Law No. 14 of February 20, 2017, municipalities may, in fact, install video surveillance cameras on public roads for the pursuit of the

objectives of "prevention and contrast of widespread and predatory crime," subject to the stipulation of a pact for the implementation of urban safety with the territorially competent Prefecture. In this specific case - given that the aforementioned camera was capable of recording also the internal environments of the Municipality's headquarters, and could not ontologically fulfill the task of preventing and contrasting the specific phenomena of widespread and predatory crime, to which the referenced sector regulation pertains, which typically occur on public roads - the Municipality has not demonstrated that it entered into a pact with the territorially competent Prefecture for the implementation of urban safety that expressly provided for the installation of the camera in question inside the lobby of the Municipality's headquarters for the pursuit of purposes related to urban safety.

Nor can the use of the camera in question be traced to the broader scope of public safety, given that the local police do not have general competencies in this matter. Article 5, paragraph 1, letter c), of Law No. 65 of March 7, 1986 ("Framework Law on the Organization of Municipal Police") provides, in fact, that "the personnel performing municipal police service, within the territorial area of the entity of belonging and within the limits of their own attributions, also exercises [...] auxiliary functions of public safety"; this "collaborat[ing], within the scope of their own attributions, with the State Police Forces, upon the mayor's order, when a motivated request is made by the competent authorities for specific operations" (Article 3). To this end, the Prefect grants local police personnel, upon communication from the Mayor, the status of public safety agent, after verifying the possession of the requirements established by law (Article 5, paragraph 2). In the exercise of the functions of public safety agent, such personnel, made available by the Mayor, operates under the competent public safety authority in compliance with any agreements between said authorities and the Mayor (Article 5, paragraph 4). Consequently, as there is no indication in the records from the competent public safety authorities regarding "specific operations" and since the local police of the Municipality cannot initiate general preventive public safety activities on their own initiative, it must be excluded that the use of the camera in question can be traced to the realm of public safety (see, in this regard, the recent provision of January 11, 2024, No. 5, web doc No. 9977020, paragraph 4). The Municipality then argued that this camera...

would have been employed in the different area of judicial police activity, at the instigation of the Mayor, "as a Judicial Police Officer pursuant to Article 57, paragraph 1, letter c of the Code of Criminal Procedure," on the assumption of the existence of "serious indications against the notifier consisting of the failure to comply with the 'formalities required for the detection of attendance'" (see defensive memorandum). Noting that there is no evidence in the records that the Municipality - represented by the Mayor (cf. Article 55, paragraph 3, of the Code of Criminal Procedure and Article 57, paragraph 1, letter c), of the Code of Criminal Procedure) or through agents of the Local Police (cf. Article 55, paragraph 3, of the Code of Criminal Procedure and Article 5, paragraphs 1, letter a), and 4 of Law No. 65 of March 7, 1986) - has carried out, in this case, judicial police activities at the instigation, under the dependency and direction of the judicial authority (cf. Articles 55, paragraph 2, and 56 of the Code of Criminal Procedure), it is observed that, contrary to what was proposed by the data controller, it appears instead in the records that the Mayor filed a specific complaint against the worker concerned, without making any reference to evidence obtained through surveillance devices or to an alleged activity delegated by the judicial authority (see Annex 9 to the defensive memorandum; regarding the prerequisites that justify judicial police activities by municipalities through the Local Police Force, see provision of November 16, 2023, No. 577, web document No. 9963453). The specific processing carried out through the surveillance camera in question is instead governed by paragraph 1 of Article 4 of Law 300/1970, as evidenced by the fact that the Territorial Labor Inspectorate of Cremona had conducted an inspection at the Municipality, following which the latter had deactivated the surveillance camera in question and that, subsequently, with a "request received on date XX and perfected on date XX," it had asked the aforementioned Inspectorate for authorization pursuant to the aforementioned Article 4, paragraph 1, of Law 300/1970 to install "a remote control system [of the] premises, based on needs [for] the protection of company assets" (see the provision of the aforementioned Inspectorate No. XX of XX, in the records). The same data controller, during the investigation, also invoked needs that could be traced back to paragraph 1 of Article 4 of Law 300/1970, in particular, in addition to those

for the protection of its own assets, also those for the protection of worker safety, on the assumption that in the month of XX an assault had occurred against a social worker and a councilor.

Clarifying the context of reference, it should be noted that the Guarantor, also recalling the jurisprudence of the European Court of Human Rights, in the case of *Antovic and Mirković v. Montenegro* (Application No. 70838/13 of November 28, 2017), has repeatedly highlighted that video surveillance in workplace contexts, both private and public, can only be justified in compliance with the guarantees provided by the applicable national law, in the absence of which it constitutes an unlawful interference in the private life of the employee, pursuant to Article 8, paragraph 2, of the European Convention on Human Rights. Therefore, compliance with the aforementioned Article 4, paragraph 1, also by virtue of the reference contained in Article 114 of the Code, constitutes a condition for the lawfulness of the processing of personal data (cf., most recently, regarding the use of video surveillance in public workplaces, provision of November 16, 2023, No. 578, web document No. 9963486, as well as provisions of March 11, 2021, No. 90, web document No. 9582791 and March 5, 2020, No. 53, web document No. 9433080, particularly point 4.2, as well as the precedents cited therein; at the European level, see the “Guidelines 3/2019 on the processing of personal data through video devices,” cited, especially paragraph 48, as well as the previous indications of the Article 29 Working Party in “Opinion 2/2017 on the processing of data in the workplace,” WP 249, of June 8, 2017; in jurisprudence, see Cass. pen., section 3, December 17, 2019, No. 50919).

In this case, it has been established that, during the period between the month of XX and XX, the Municipality processed personal data relating to its workers, namely the images acquired through the surveillance camera in question, in the absence of an agreement with the trade unions or an authorization granted by the Labor Inspectorate, which was instead obtained on date XX and, therefore, until that date did not comply with the prerequisites and guarantees provided by the aforementioned sector regulations regarding remote monitoring, in violation of Articles 5, paragraph 1, letter a), 6, and 88 of the Regulation, as well as 114 of the Code, in reference to Article 4, paragraph 1, of Law No. 300 of 1970.

Regarding the related aspect of the fairness and transparency of the processing, it should be noted that, when video surveillance systems are employed, the data controller, in addition to providing first-level information through the placement of warning signage near the area under video surveillance, must also provide the data subjects with “second-level information,” which must “contain all the mandatory elements pursuant to Article 13 of the [Regulation]” and “be easily accessible to the data subject, for example through a complete information page made available at a central hub (information desk, reception, cash register, etc.) or posted in an easily accessible location” (“Guidelines 3/2019 on the processing of personal data through video devices,” cited, in particular, paragraph 7; but see also the aforementioned “Provision on video surveillance” by the Guarantor of April 8, 2010, particularly paragraph 3.1; see, most recently, the recent FAQs from the Guarantor regarding video surveillance, cited, n.

4). The first-level information (warning sign) “should communicate the most important data, such as the purposes of the processing, the identity of the data controller, and the existence of the rights of the data subject, along with information on the most significant impacts of the processing” (“Guidelines 3/2019 on the processing of personal data through video devices,” cited, par. 114). Furthermore, the signage must also contain information that may be unexpected for the data subject. This could include, for example, the transmission of data to third parties, particularly if located outside the European Union, and the retention period. If such information is not provided, the data subject should be able to trust that there is only real-time surveillance (without any data recording or transmission to third parties) (*ibidem*, par. 115). The warning signage containing the first-level information must include a clear reference to the second-level information, for example, by indicating a website where the text of the extended information can be consulted (see, specifically regarding the use of video surveillance cameras in public workplaces, provision of November 16, 2023, no. 578, web doc no. 9963486 and March 11, 2021, no. 90, web doc no. 9582791; more generally, regarding the use of video devices by municipalities, see, lastly, provision of January 11, 2024, no. 5, January 11, 2024, and the previous

references therein).

That said, in acknowledging what was stated by the Municipality in its defense memorandum regarding the circumstance that "signage [...] was installed in the immediate vicinity of the deployed cameras," it must be noted that the Municipality has, however, failed to provide the data subjects with an appropriate extended information notice, at the second level, on the processing of personal data. The Municipality has, in fact, limited itself to claiming that it has fulfilled its informational obligations with the publication of the municipal regulation on video surveillance, approved by resolution no. 26 of June 29, 2005. In this regard, it is observed that this document does not contain all the essential informational elements required by Article 13 of the Regulation (for example, the purpose and legal basis of the processing carried out through cameras located within the Municipality's premises, as a workplace; the contact details of the data protection officer), having been approved well before the effective date of the same. In fact, it "regulates the methods of collection, processing, and retention of personal data activated in the urban territory of the Municipality of Madignano and connected to the control and video recording station" (art. 4) and does not, instead, serve the purpose of fulfilling the informational obligations towards the data subjects. Article 5 ("Information") of the same regulation provides, on the other hand, that "data subjects must be informed that they are about to access or are in a video-surveilled area, and of any recording, through a simplified model of 'minimum' information," while "in places other than external areas, the model must be supplemented with at least one detailed notice that includes the elements indicated by Article 13 of the Code [in the text in force at the time], with particular regard to the purposes and any retention."

As for the workers employed by the Municipality, it should be noted that, as already highlighted by the Authority in previous decisions, acts and documents that, as in the present case, are drafted by the employer to fulfill obligations other than those arising from the data protection regulations cannot replace the information that the data controller must provide, before starting the processing, to the data subjects regarding the essential characteristics of the same; this in order to allow the data subject to be fully aware of the type of processing operations that may be carried out, also drawing, within a framework of lawfulness, on data collected during the work activity (see, in particular, provision of May 13, 2021, 190, web doc no. 9669974, which refers to the Judgments of the European Court of Human Rights of September 5, 2017 - Application no. 61496/08 - Case *Barbulescu v. Romania*, specifically par. n. 133 and 140 and of January 9, 2018 - applications no. 1874/13 and 8567/13 - Case *López Ribalda and others v. Spain*, specifically par. n. 115; see also Working Party Art. 29, "Guidelines on Transparency under Regulation 2016/679" of April 11, 2018, par. 17).

On the other hand, the municipal regulation on video surveillance was approved on XX, that is, well before the adoption of the authorization measure by the Territorial Labor Inspectorate of Cremona on XX, and therefore, this regulation cannot account for the specific legal basis (see art. 13, par. 1, lett. c), of the Regulation) on which, in the present case, the processing of personal data of the workers could be based (art. 6, par. 1, lett. c), and 88 of the Regulation; art. 4, paragraph 1, of law 300/1970; art. 114 of the Code).

In light of the above considerations, it must be concluded that the Municipality has not provided the data subjects (both workers and users or visitors at its premises) with an appropriate notice on the processing of data, complete with all the elements required by the Regulation, in violation of Articles 5, par. 1, lett. a), 12, and 13 of the Regulation.

3.3. The use of data collected through the video surveillance system for disciplinary purposes. During the investigation, it was also established that, with note one of XX, the municipal secretary transmitted to the Disciplinary Proceedings Office of the Province of Cremona a reporting of facts having disciplinary relevance against the employee concerned. In this note, in particular, the incorrect representation of attendance was contested, on the assumption that the employee failed to clock out on days XX and XX. Furthermore, the introduction of unauthorized persons into the municipal premises on date XX was also contested against the employee.

In the aforementioned transmission note to the competent Office, the municipal Secretary, while

reporting that the administration had learned of the conduct exhibited by the employee, having received reports from third parties, stated that "the Municipality is equipped with a video surveillance system concerning, among other things, the entrance to the municipal headquarters and the atrium leading to the offices" (see the preamble referred to in letter b)), and included a specific statement from the Mayor, namely that he had "personally [...] reviewed the municipal cameras to verify the truthfulness of the reports, confirming their validity: just after clocking in, the employee left the municipality and returned shortly thereafter" (see attachment 1 to the aforementioned note of XX), thereby confirming that the disciplinary allegations in question were made against the employee also based on the actual review of the surveillance footage.

This circumstance is also corroborated by the documentation on file related to the disciplinary procedure, as in the provision from the Office for Disciplinary Proceedings of the Province of Cremona prot. n. XX of XX (with which the disciplinary sanction was imposed on the employee in relation to the aforementioned conduct), in responding to what was proposed by the employee's lawyer regarding the "violation of Article 4 of Law 300/1970," it is specified that "regarding the alleged violation of Article 4 of the Workers' Statute [...] [the following] are outside the scope of application of the norm: control for the protection of assets as well as checks aimed at ascertaining unlawful conduct of the worker, especially ex post, that is, after the implementation of the behavior in question, thus disregarding mere surveillance of the execution of the work performance (in this sense, Cass. 3255/2021)."

It must, however, be emphasized again that the processing of personal data related to the use of tools from which the possibility of remote monitoring of workers' activities may also arise must be carried out in strict compliance with the limits and conditions set forth by the relevant legislative framework, which constitutes, as mentioned, the legal basis (Articles 5, paragraph 1, letter a), 6, 88, paragraph 1, of the Regulation, as well as 114 of the Code, in reference to Article 4 of Law No. 300/1970).

As recently reiterated by the Guarantor, following the amendments made to Article 4 of Law No. 300/1970 by Legislative Decree No. 151 of September 14, 2015, the needs for the protection of the employer's assets have also been expressly included among the only legitimate purposes that can be pursued through systems that may involve indirect control over the generality of employees, making their installation and use subject to a trade union agreement or, alternatively, public authorization, with the consequence that, if these conditions for the lawful use of the aforementioned systems are not respected, any further processing of such data, including their "extraction, consultation, and use" (Article 4, paragraph 1, no. 1, of the Regulation), must be considered devoid of an appropriate legal basis and therefore unlawful (see provision of December 1, 2022, No. 409, web document No. 9833530). Consequently, the forms of control over the activities of workers, implemented in the absence of the aforementioned guarantees, fall outside the framework of legality outlined by the sector regulations and the discipline regarding data protection.

It should also be noted that the aforementioned sector regulations allow for the use, for further purposes within the management of the relationship, only of information that has already been lawfully collected in compliance with the conditions and limits set forth in Article 4 of Law No. 300/1970 and, therefore, within the limits in which the original collection was lawfully carried out. This framework thus presupposes an autonomous determination by the data controller regarding the use of the information, where already lawfully collected in compliance with the conditions and limits set forth in Article 4, paragraphs 1 or 2 of Law No. 300/70, even for further processing necessary for the management of the employment relationship (Article 4, paragraph 3 of Law 300/1970). Such subsequent and potential processing operations presuppose compliance with the regulatory framework regarding both remote monitoring of workers (pursuant to paragraphs 1 and 2) and data protection.

This also concerns the necessity to provide the interested parties with all necessary information to ensure that employees are fully aware of any further processing that the employer reserves the right to carry out (on this point, see provisions of December 1, 2022, No. 409, cited; October 28, 2021, No. 384, web document No. 9722661; May 13, 2021, No. 190, web document No. 9669974; see also provision of May 24, 2017, No. 247, web document No. 6495708, especially point 5.3 and letter e) of the device).

In this specific case, without prejudice to the evaluations expressed in the previous paragraph 3.2 regarding the use of the aforementioned video surveillance system in the absence of the guarantees provided for in Article 4, paragraph 1, of Law 300/1970, it appears that the disciplinary measure in question was adopted on XX, that is, on a date prior to the one on which authorization was obtained from the Territorial Labor Inspectorate for the installation of said camera, without having provided employees with adequate information.

****Regarding the methods by which it reserved the right to use the aforementioned data within the employment relationship pursuant to paragraph 3 of the aforementioned Article 4.****

Lastly, in light of what has been presented by the Municipality, it is recalled that in this context the Guarantor has clarified that “the so-called theory of defensive controls, purely a jurisprudential creation, is subject to non-univocal applications” (see, on this point, provisions of December 1, 2022, no. 409, cited, and April 15, 2021, no. 137, web document no. 9670738) and is based on factual circumstances that do not occur in the specific case (given that the Municipality installed the surveillance camera prior to the events subsequently contested against the employee and in such a way as to capture all workers and visitors passing through the building's atrium); indeed, as already highlighted, the needs for the protection of the employer's assets have been expressly included among the legitimate purposes that can be pursued through surveillance systems, subordinating their installation and use to a trade union agreement or, alternatively, to public authorization (Article 4, paragraph 1, Law 300/1970).

For these reasons, it must be concluded that the use, by the Municipality, of data collected through the aforementioned surveillance system, within the disciplinary procedure initiated against the reporting employee, occurred in violation of both the sector regulations regarding remote controls and those regarding data protection, in violation of Articles 5, paragraph 1, letters a) and b), 6, and 88 of the Regulation, as well as Article 114 of the Code, in reference to Article 4, paragraph 3, of Law no. 300 of 1970.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the objections notified by the Office with the act of initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Guarantor's Regulation no. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having processed personal data through a video device, also for disciplinary purposes against an employee, and in the absence of transparency towards the interested parties, in violation of Articles 5, paragraph 1, letters a) and b), 6, 12, 13, and 88 of the Regulation, as well as Article 114 of the Code (in reference to Article 4, paragraphs 1 and 3, of Law no. 300 of 1970).

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this specific case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000.

****5. Corrective Measures (Article 58, paragraph 2, letter d), of the Regulation).****

Article 58, paragraph 2, of the Regulation grants the Guarantor the power to “order the data controller or the data processor to bring the processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a certain time frame” (letter d).

Based on what emerged at the conclusion of the investigation regarding the obligations related to transparency, it is necessary, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to order the Municipality to provide all interested parties (i.e., both workers and visitors at the Municipality's

premises), pursuant to Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation, with an appropriate notice regarding the processing of personal data, collected and processed through the surveillance camera in question, containing all the essential informational elements referred to in Article 13 of the Regulation.

Pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, the Municipality must also communicate to the Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken in order to implement what has been ordered above pursuant to the aforementioned Article 58, paragraph 2, letter d), as well as any measures taken to ensure compliance of the processing with the regulations on personal data protection.

****6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letters i and 83 of the Regulation; Article 166, paragraph 7, of the Code). ****

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [referred to in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Guarantor's Regulation no. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this specific case, the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount while duly considering the elements provided for by Article 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the specific nature of the processing has been considered, initiated in a manner not compliant with the sector regulations regarding the use of tools that may involve monitoring of work activities and the indications provided over time by the Authority, for the relevant aspects (cf. Article 83, paragraph 1, letter a), of the Regulation).

Furthermore, it has been taken into account that the Municipality, despite the initiation of the investigation by the Authority, has not proven to have provided the interested parties (citizens, visitors, and employees) with specific information regarding the processing of personal data through the surveillance camera in question (cf. Article 83, paragraph 1, letter a), of the Regulation).

For the aforementioned reasons, it is believed that, in this case, the level of severity of the violation committed by the data controller is high (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, it should be considered, in favor of the data controller, that it is a small Municipality (about 2,700 inhabitants) and that, for the purposes of Article 83, paragraph 2, letter e), of the Regulation, there are no previous relevant violations committed by the data controller or previous measures referred to in Article 58 of the Regulation.

Finally, for the purposes of Article 83, paragraph 2, letter k), of the Regulation, it is believed that the violation concerned a specific internal structure of the data controller and not the overall organization of the same.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €3,000 (three thousand) for the violation of Articles 5, paragraph 1, letters a) and b), 6, 12, 13, and 88 of the Regulation, as well as 114 of the Code (with reference to Article 4, paragraphs 1 and 3, of Law No. 300/1970), as an administrative pecuniary

sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the processing carried out involved personal data relating to vulnerable subjects in the work context (cf. Recital 75 and Article 88 of the Regulation and “Guidelines on Data Protection Impact Assessment and the Criteria for Determining Whether a Processing Operation 'Could Result in a High Risk' under Regulation 2016/679”, WP 248 of April 4, 2017), it is also believed that the accessory sanction of publication on the Authority's website of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Madignano for violation of Articles 5, paragraph 1, letters a) and b), 6, 12, 13, and 88 of the Regulation, as well as 114 of the Code (with reference to Article 4, paragraphs 1 and 3, of Law No. 300/1970), as stated in the reasoning;

ORDERS

the Municipality of Madignano, represented by its legal representative pro tempore, with registered office at Via Libertà, 22 - 26020 Madignano (CR), Tax Code 00302860192, to pay the sum of €3,000 (three thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

COMMANDS

- the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €3,000 (three thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;
- pursuant to Article 58, paragraph 2, letter d), of the Regulation, to provide all interested parties (both workers and visitors at the Municipality's premises), pursuant to Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation, with suitable information on the processing of personal data, containing all the essential informative elements referred to in Article 13 of the Regulation;
- pursuant to Article 157 of the Code, to communicate to the Authority, within 30 days from the notification of this provision, the initiatives taken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation;

DISPOSES

- the publication of this provision on the Authority's website pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Authority's Regulation No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and the measures adopted in accordance with art. 58, par. 2, of the Regulation (see art. 17 of the Regulation of the Guarantor no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of notification of the provision itself or within sixty days if the appellant resides abroad.

Messina, April 11, 2024

THE PRESIDENT
Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei